

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/22/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922
CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE
*HEARING ON MOTION IN RE: CONTINUE TRIAL IN ORDER TO HEAR DEFENDANTS' MOTION FOR SUMMARY JUDGMENT
FILED BY: CAREPATROL FRANCHISE SYSTEMS, LLC
TENTATIVE RULING:
Off calendar. Withdrawn by moving party.

2. 9:00 AM CASE NUMBER: C22-02520
CASE NAME: ETIENNE VS. RICHMOND AMERICAN HOMES OF CALIFORNIA, INC.
*HEARING ON MOTION IN RE: VACATE DISMISSAL
FILED BY: ETIENNE, LINSAY
TENTATIVE RULING: